

Form 24 – Notice to admit facts · PART B: SUMMARY SCHEDULE

WC/2024/227 · Shepherd v Workers' Compensation Regulator

This Part is served with, and in addition to, the itemised schedule in Part A. It does not replace it and does not derogate from it. Each fact below is a composite of facts already specified in Part A, and the paragraphs of Part A that specify them are identified against each. It is provided so that the respondent may, if it wishes, admit a limb as a whole rather than paragraph by paragraph. A response to a fact in this Part is not a response to any fact in Part A, and the facts in Part A are unaffected by it.

Limb	Fact to be admitted	Admit / Deny
Prelim.	The role, and the hours the Appellant sought and obtained The role description for Administration Officer, Switchboard Services, Logan Hospital states that the occupant "is required to work continuous shift work over the full 24-hour period, 7 days a week", that the position reports to the Switchboard Manager, and that its responsibilities include maintaining the Omnivista database, maintaining pager registers, and participating in the emergency response process "strictly adhering to protocols and timeframes". On 18 February 2026 the Respondent admitted that "Maintaining accurate contact details for medical staff is a critical function of the Switchboard to ensure effective clinical handover and patient safety". In August and September 2023 the Appellant sought additional hours and confirmed in writing that he was "able and willing to work any roster that is presented to me, including the current schedule with full 24-hour availability"; Ms Taylor approved permanent full-time hours on 27 September 2023, commencing 16 October 2023. Specified in Part A at paragraphs 1–16 and 26–38.	

Limb	Fact to be admitted	Admit / Deny
1(a)	The database, the directives, the stated hours, and the two accumulations The database. From 18 July 2023 the Appellant's access to the Switchboard database was removed by Ms Stibbard, who stated her own hours for making entries as "every Tuesday and second Monday, 8:00 - 16:00", directed that entries be requested from her directly, directed that an urgent entry needed on a day she was absent be sent to Ms Taylor, stated that a request made "after hours (overnights, on the weekend or public holiday)" would "have to wait until either Chloe or myself are back", and removed the Contact & Number Changes book from the room. On the Respondent's pleadings that access was not restored before 18 June 2024, and the duties requiring it remained assigned to the Appellant throughout. The on-call change, and the hours. On 15 April 2024 at 12:39 pm Ms Taylor notified Logan Switch that she and Ms Stibbard had added themselves to after-hours on call, "effective from today", signing as "A/Switchboard Manager". The only statement of her hours then before the team was the range recorded in her email of 23 August 2023, a start "between 6:00 to 9:00 am" and a finish "between 2:00 to 5:00 pm". She did not state fixed office hours to the team until 17 May 2024 at 9:30 am, when she gave them as "06:30-14:30", an interval of 32 days. The MASPER accumulation. Between 2 and 8 May 2024 the MASPER Registrar reported nine occasions of misrouted calls to Ms Taylor in two emails, the second five days after the first. Ms Taylor answered the Registrar on 9 May 2024 at 9:20 am and told Logan Switch at 10:15 am that day, six days after the first report. The request for hours and consultation. On 15 May 2024 at 1:15 pm the Appellant asked Ms Taylor, copied to the Switchboard staff, Ms Reese and LBH_HR, to share her office hours and to ensure that directives and changes were made in consultation with the team. Ms Reese replied at 6:23 pm asking him to retract that email, and on 21 May 2024 at 2:53 pm asked him to identify which changes or directives had concerned him. The respiratory directory. On 15 May 2024 at 11:47 am and again on 20 May 2024 at 11:03 am the Integrated Respiratory Service asked that the directory be corrected, the second email recording that the calls had continued. The Appellant's recommendation followed at 2:05 pm on 20 May 2024, three hours and two minutes after the second request and within the office hours Ms Taylor had stated three days earlier. Ms Taylor replied at 4:30 pm, two hours after those stated hours concluded. Specified in Part A at paragraphs 39–114.	
1(a)	The notification of unavailability, 13 to 15 May 2024 Ms Taylor's email of 15 April 2024 states that during office hours the Appellant was to contact her "through switch/office or mobile", and her email of 14 May 2024 at 12:08 pm states that he could contact her "either through switch or my office/mobile". Each identifies the Switchboard as a permitted means of contact. Ms Taylor's email to Ms McNamee of 17 May 2024 at 1:20 pm records that on each of 13, 14 and 15 May 2024 the Appellant notified his unavailability by telephoning the Switchboard, and records of the call of 13 May 2024: "I told him I am more than happy to cover his shift and if he was unwell, it would be preferred for him not to come into work." No document recording that Ms McNamee sought the Appellant's account of those matters has been identified or disclosed in the Respondent's disclosed material presently before the Commission. Specified in Part A at paragraphs 151–156.	
1(b)	The communication book On 6 June 2023 Ms Taylor removed a page from the workplace communication book. In an email to Ms Reese of the same day she stated: "I did raise my voice and asked him to please stop talking over the top of me." Both facts were admitted by the Respondent on 18 February 2026. Specified in Part A at paragraphs 269–285.	

Limb	Fact to be admitted	Admit / Deny
1(c)	The matters raised in August and September 2023 On 7 August 2023 the Appellant raised rostering and workplace matters in writing with Ms Taylor and Ms Reese. Ms Taylor replied the same day acknowledging a rostering oversight, Ms Reese replied the same day directing him to continue communicating with Ms Taylor, and on 29 August 2023 Ms Reese sent him HR Policy E12. The Appellant did not submit a grievance under that policy in 2023. Specified in Part A at paragraphs 143–150.	
1(d)	The Special Pandemic Leave application The myHR history for Process Reference 15480560 records the Appellant submitting the request on three occasions between 20 and 29 February 2024, Ms Taylor declining it twice as "Reviewer", then approving it thirteen minutes after the third submission, and Ms Reese approving it as "Manager" on 1 March 2024. The Respondent pleads that a review indicates the attachments were in fact present and that the decline was "a matter of human error by Ms Taylor". The sub-delegation instrument of 5 December 2022 confines the power to approve or not approve paid Special Pandemic Leave to a Band 9 delegate and does not permit further sub-delegation. Specified in Part A at paragraphs 115–142.	
1(g)	The union delegate and the roster consultation In April 2023 the Appellant notified Ms Taylor by text that he was "just putting his hand up" in relation to the role of union delegate, which the Respondent admitted on 18 February 2026. He was endorsed as a workplace delegate on or about 3 November 2025. The Union Encouragement Policy QH-POL-248 requires managers to take a "positive, supportive role" in relation to delegate elections. Specified in Part A at paragraphs 157–172.	
2(a)	The pay corrections On 3 May 2024 Queensland Health Payroll wrote to Ms Taylor, copied to the Appellant, identifying incorrect payments across four fortnights and asking that an AVAC be submitted to correct them. The myHR submissions report for 1 February to 31 May 2024 records five Attendance Variation and Allowance Claims for the Appellant in that period, the initiator of each being "Donovan-Taylor, Chloe", and none being the Appellant. Specified in Part A at paragraphs 173–203.	
2(b)	The delay in correcting the pay Payroll's instruction of 3 May 2024 was followed by Ms Taylor's email of 21 May 2024 stating she was still awaiting payroll confirmation, and by the submission of an AVAC on 28 May 2024. The Respondent admitted on 18 February 2026 that the AVAC was submitted on 28 May 2024. Specified in Part A at paragraphs 173–203.	
3(a)	The break of 17 and 18 March 2024 The Appellant was rostered to finish at 23:00 on 17 March 2024 and to commence at 06:00 on 18 March 2024, a break of 7 hours. The Respondent admitted that fact on 18 February 2026 and pleads it at paragraph 22(a) of its statement of facts and contentions as "a 7-hour break (rather than an 8-hour break)" resulting from "human error". Specified in Part A at paragraphs 215–227.	
3(b)	The minimum break, and what was not in place The Award and the employer's Fatigue Risk Management Policy require a minimum break of 10 hours between shifts, or 8 hours by written agreement, which the Respondent admitted on 18 February 2026. The Respondent does not allege that any fatigue risk assessment was conducted, or any fatigue risk management training provided to the Appellant, at any time before 30 June 2024, and Metro South Health stated on 5 June 2026 that implementation at Logan Hospital Switchboard occurred after 30 June 2024. Specified in Part A at paragraphs 204–214 and 243–248.	

Limb	Fact to be admitted	Admit / Deny
3(c)	The fatigue leave request and its refusal The Appellant requested fatigue payment on 8 April 2024. Ms Taylor escalated the enquiry to Human Resources on 9 April 2024 and refused it on 1 May 2024, 23 days after the request, on the basis of an agreement he had signed on 17 June 2020, adding that he was "able to terminate this agreement going forward". The Respondent's own response of 6 September 2024 confirms there had been a "change to your employment contract and adjustments in your working hours" since that agreement was signed. Specified in Part A at paragraphs 17–25 and 228–242.	
3(d)	The Review Decision Review Decision 69983 of 24 October 2024 states that the break "equated to 7 hours", that the Appellant "still did not receive a minimum 8-hour break", and that "the rostering of these two shifts amounted to unreasonable management action". The Respondent admitted the contents of that decision on 18 February 2026. Specified in Part A at paragraphs 254–259.	
General I	The Appellant's contemporaneous account, and the documents the Respondent lists On 11 August 2026 the Appellant served on the Respondent a bundle titled "Stressor 1(a) - Particulars support bundle", comprising 30 pages and six tabs, each stating a particular of Stressor 1(a) and enclosing the documents recording it. The Respondent's amended List of Documents dated 14 August 2026 lists the emails the Appellant sent to WorkCover Queensland between 12 July and 30 August 2024, including the attachments described as "Event overview", "Witness statement - Carolyn Jeffrey", "Email: After hours on call process", "Email: Task change switchboard - 19/04/2024" and "Email: MASPER process - 09/05/2024", and a follow up statement from Ms Jeffrey dated 1 August 2024. Specified in Part A at paragraphs 260–268.	
General I	The matters not done, and the matters not alleged The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any fatigue risk assessment was conducted, or any fatigue risk management training provided to the Appellant, or fatigue risk management assessment implemented at Logan Hospital Switchboard, at any time before 30 June 2024. Nor does it allege that the Appellant was subject to any disciplinary process, or to any formal performance management process, at any time before 18 June 2024, or describe any communication with him before that date as a warning. Paragraph 27 of that statement does not identify, by particular, date, document or cross-reference, the management action relied upon for the contention in that paragraph. Specified in Part A at paragraphs 249–253 and 286–289.	

Signature: _____ Print name: Cory Lea Shepherd Title of office held: Appellant (self-represented)
Date: ____ / ____ / ____